

From: "rich@richmclean.com.au" <rich@richmclean.com.au>
Subject: Re: Commonwealth Ombudsman Complaint - 2021-704235
Richard McLean
Date: 25 August 2021 at 12:56:15 pm AEST
To: Ombudsman <ombudsman@ombudsman.gov.au>

Hi Helen @ ombudsman,

Please start a new claim.

Whilst I acknowledge your email, it does not make sense to me.

Neither does Peter Fowlers rejection letter.

You have closed my complaint, however then you say contest it.

I ALREADY HAVE and it has been rejected.

This is by

Paul Fowler here:

As you can see, he says it has been denied for:

Dear Dr McLean
Reconsideration of determination

You have requested Comcare reconsider our determination dated 26 May 2021, which declined your claim for anxiety state and depressive disorder.;

This is inconsistent, and incorrect.

However this is then contradicted in what follows, saying I am not an ‘employee’ of the NDIS.

From the ComCare website:

FACT NDIS is a ‘statutory authority’ - so Comcare manages this.

Who manages the claim

Table 1: Claims management arrangements for employees in the Comcare scheme

For employees of:	The claim is managed by:
Australian Government agencies and statutory authorities	Comcare

From Comcare’s website:

Eligibility

Expand all

Employees who are covered

The [Safety, Rehabilitation and Compensation Act 1988](#) (SRC Act) sets out workers' compensation and rehabilitation arrangements for:

- employees of Australian Government agencies and statutory authorities
- employees of organisations who have been granted a [licence to self-insure](#).

Your employer can let you know whether you are covered by the SRC Act or you can contact us directly on 1300 366 979.

<https://www.comcare.gov.au/claims/making-a-claim/workers-compensation>

From NDIA website it IS a statutory agency.

The national disability insurance agency (NDIA) is an independent statutory agency

<https://www.comcare.gov.au/claims/making-a-claim/workers-compensation>

Employees of an Australian Government agency or statutory authority

Submitting your claim through our online form is the most efficient way to provide us with your information.

You can also submit a claim by completing the paper worker's compensation claim form. If you are finding it difficult to make a claim with us, contact Comcare on 1300 366 979 and we can assist you to submit your claim.

<https://www.comcare.gov.au/claims/making-a-claim/workers-compensation>

FROM THE NDIS
WEBSITE AS FOLLOWS-
WHO IS A WORKER OR

EMPLOYEE?

Workers

The NDIS Quality and Safeguards Commission is an independent government body that will work to improve the quality and safety of NDIS supports and services, and strengthen the skills and knowledge of workers, providers and participants across Australia.

The NDIS Commission is now operating in all states and territories.

Who is a worker?

Under the NDIS Commission, a worker is **anyone who is employed or otherwise engaged to provide NDIS supports and services to people with disability.** Workers can be paid or unpaid, and can be people who are **self-employed, employees, contractors, consultants, and volunteers.**

**So therefore It is
incorrect that I am not
am employee, re:**

Workers can be paid or unpaid, and can be people who
are **self-employed, employees, contractors, consultants,
and volunteers.**'

**I do not know how to
state this any clearer.**

**Please investigate this as
a new claim before the
ombudsman.**

Thanks

Dr Rich Mclean

On 25 Aug 2021, at 11:58 am, ombudsman@ombudsman.gov.au wrote:

Our ref: 2021-704235

Dear Dr McLean

Thank you for your e-mails about your complaint – our ref: 2021-704235.

I note that you are contesting Comcare's decision to reject your workcover claim. This is the appropriate action to take. The Commonwealth Ombudsman cannot replace an agency or department's structured review process. You are open to request a review of a decision at:

www.comcare.gov.au . If you do not agree with the outcome of Comcare's review you could return to our Office and open a new complaint.

In terms of crisis support, you may wish to contact Lifeline on **13 11 14** to access general assistance and support. Lifeline is a 24-hour crisis line staffed by trained volunteers who are ready to listen, provide support and referrals. You can also access further information about this service online at: www.lifeline.org.au .

Ask Izzy is a mobile website that connects people in need with housing, a meal, money help, health and wellbeing services, support, counselling and much more. You can access Ask Izzy via the following website: <https://askizzy.org.au> .

Please note that your complaint ref: 2021-704235 remains closed.

Yours sincerely

Helen
Complaint Resolution Officer
Commonwealth Ombudsman
Phone: 1300 362 072
Email: ombudsman@ombudsman.gov.au
Website: ombudsman.gov.au

[<Mail Attachment.png>](#)

Influencing systemic improvement in public administration

The Office of the Commonwealth Ombudsman acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elders past and present.

COMMONWEALTH OMBUDSMAN - IMPORTANT
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